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March 3, 2025

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 447

By: Boren

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[ state property - nuts and edible plants or fungi -
exceptions - times for foraging - promulgation of
rules - codification - effective date ]
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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 335 of Title 61, unless there is created a duplication in numbering, reads as follows:

A. Any person may forage for nuts and edible plants or fungi on state-owned or state-managed property for personal use and not for resale except when such nuts and other edible plants or fungi are:

1. From crops certified by the Oklahoma Agricultural Experiment Station system or the Oklahoma Cooperative Extension Service of the Oklahoma State University Division of Agricultural Sciences and Natural Resources, as provided in Section 8-33 of Title 2 of the Oklahoma Statutes;

2. Located on state-owned or University-owned test or research farms;

3. On property otherwise restricted for access by state or federal law; or

1 4. From plants that are threatened or endangered.

2 B. 1. Any person foraging pursuant to this section on a state
3 or federal wildlife refuge or Wildlife Management Area shall limit
4 his or her foraging to days and times authorized by the Oklahoma
5 Wildlife Conservation Commission.

6 2. The Commission shall promulgate all rules necessary to
7 implement the provisions of this section.

8 C. As used in this section:

9 1. "State-owned or state-managed property" means property owned
10 or managed by an agency, municipality, or political subdivision of
11 this state, unless otherwise stated in subsection A of this section;

12 2. "Edible plant or fungus" means a plant or fungus commonly
13 found in the wild, which is edible to humans in part or in its
14 entirety and may require cooking to make safe for consumption; and

15 3. "Nut" means a dry fruit that has a single seed, a hard
16 shell, and a protective husk.

17 SECTION 2. This act shall become effective November 1, 2025.

18 COMMITTEE REPORT BY: COMMITTEE ON AGRICULTURE AND WILDLIFE
19 March 3, 2025 - DO PASS AS AMENDED BY CS
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